

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No. 64140 of 2023

Fazle Rabbi @ Rabbi

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Md. Fuad Hasan, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 02.01.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in Sessions Case No. 2607 of 2017 arising out of Khulshi Police Station Case No. 03 dated 04.06.2015 corresponding to G.R. Case No. 126 of 2015 under Sections 302/201/34 of the Penal Code, 1860, now pending in the Court of learned Additional Metropolitan Sessions Judge, 5th Court, Chattogram and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that in this case under Section 302/201/34 of the Penal Code victim Md. Khokon Sarkar was brutally murdered on 28.05.2015 and in the FIR of above case the name of the petitioner stands at serial No. 5.

Mr. Md. Fuad Hasan, learned Advocate for the petitioner submits that in this case the name of petitioner stands in serial No. 5 of the FIR but he did not make any confession. He is in custody in connection of this case for more than 03(three) years. In above case 5(five) prosecution witnesses were examined in 2021 but there is no further progress of the trial. The names of co-accused Md. Sharif Ahammad @ Tempu Sharif, Md. Sharif Rahman @ Sundar Sharif, Rejaul Karim Raju and Md. Sohag stand at serial Nos. 1, 2, 3 and 4 respectively and each of them made separate confessions under section 164 of the Code of Criminal Procedure and all of them have been granted bail by this court.

Mr. Sujit Chatterjee, learned Deputy Attorney General raises objection against granting of bail to the petitioner at this point.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

As mentioned above the name of the petitioner stands at serial No. 5 of the FIR and he is in custody in connection of the case for more than 3(three) years. After 2021 not a single prosecution witness has been examined by the prosecution. The petitioner did not make any confession. Co accused Nos. 1, 2, 3 and 4 of the FIR namely Sharif Ahang, Md. Sharif Rahman, Rezaul Karim, Md. Shohag have made separate confessions under section 164 of the Code of Criminal Procedure and all of them have been granted bail by this court.

On consideration of the material on record, we are inclined to grant bail to the petitioner.

In above view of the materials on record, we find substance in this petition and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is made absolute.

Let the accused-petitioner namely Fazle Rabbi @ Rabbi, son of Md. Helal Mondal be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Additional Metropolitan Sessions Judge, 5th Court, Chattogram.

The learned Judge of the Court below is at liberty to cancel the bail of the accused-petitioner if he misuses the privilege of bail in any manner whatsoever.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.